

Uttam Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 31 October 2019 · Writ-C No. 34944 of 2019 · **Writ disposed of; petitioner relegated to CGRF under Clause 7.10.**

HEADNOTE

A writ challenging the Executive Engineer's finding that an electricity bill is correct will not be entertained where Clause 7.10 of the U.P. Electricity Supply Code, 2005 provides a Consumer Grievance Redressal Forum remedy. Bill correctness is a pure question of fact. The petition was disposed of, leaving the consumer to apply to the Forum, which was to decide any such application within four weeks by a reasoned order.

FACTUAL SUMMARY

Uttam Singh challenged by writ the Executive Engineer's order dated 9 July 2019 under the U.P. Electricity Supply Code, 2005, which had found his electricity bill correct. He contended that although the High Court had earlier directed the respondents to decide his representation, the Engineer recorded that the bill was correct without discussing any material, rendering the order perverse. The distribution company answered that Clause 7.10 of the Supply Code afforded a statutory remedy before the Consumer Grievance Redressal Forum against the Engineer's decision on bill correctness.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF remedy for bill-correctness dispute

HOLDING

Correctness of electricity bills and verification of the licensee's records raise a pure question of fact which the High Court will not examine in writ jurisdiction, particularly where Clause 7.10 of the U.P. Electricity Supply Code, 2005 provides a remedy before the Consumer Grievance Redressal Forum against the Executive Engineer's decision on bill correctness. The petitioner was left free to apply to the Forum under Clause 7.10; if he approached within two weeks, the Forum was to dispose of the application within a further four weeks by a reasoned and speaking order. The writ petition was disposed of. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL WAS CORRECT AND WHETHER THE EXECUTIVE ENGINEER'S ORDER DATED 9 JULY 2019 WAS PERVERSE FOR WANT OF DISCUSSION OF MATERIAL.

¶ 5